

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 1162 OF 2012

Al-Haj Abdul Mannan

----- Petitioner

-Versus-

Md. Nuruzzaman Khan and another

----- Opposite Parties

Mr. Khalilur Rahman Bhuiyan,
Advocate

----- For the Petitioner

Mr. Md. Nurul Amin, Advocate

----- For the Opposite Party No. 1

Heard and **Judgment on 06.12.2016**

At the instance of the defendant-petitioner, Al-haj Abdul Mannan, leave was granted by this court under section 115(4) of the Code of Civil Procedure against the Judgment and Order dated 27.02.2012 passed by the learned Additional District Judge, 2nd Court, Dhaka rejecting the Civil Revision No. 167 of 2011 by affirming those dated 12.05.2011 passed by the learned Senior Assistant Judge, 4th Court, Dhaka allowing the amendment petition of plaint with cost of Tk. 1,000/- under order 6 Rule 17 of the Code of Civil Procedure read with section 151 of the same Code of Title Suit No. 246 of 2000.

The relevant facts for disposal of the leave granting order, inter alia, are that the preset opposite party No. 1 as

the plaintiff filed the Title Suit No. 246 of 2000 in the court of learned Senior Assistant, 4th court, Dhaka for a decree of mandatory injunction against the present opposite party No.2.

The plaintiff's case, in short, is that the suit property is Motijheel C.S. Khatian No. 6947/01, S.A. Khatian No. 319, C.S. Dag No. 97, S.A. Dag No. 2011 and 2012 under P.S. Motijheel, Dhaka and the land measuring 2 fit × 2 fit out of 2 kathas in the said land.

During pendency of the aforementioned suit present opposite party as the plaintiff filed an application for amendment of plaint under Order 6 Rule 17 of the Code of Civil Procedure on 06.03.2011. After hearing both the parties the learned Assistant Judge allowed the application but by imposing a fine of Tk. 1,000/- upon the present opposite party No. 1. It is to be mentioned here that the defendant No. 2 Al-haj Abdul Mannan was added in the said suit on his own application. Being aggrieved the present petitioner filed revisional application being Civil Revision no. 167 of 2011 in the court of learned District Judge, Dhaka. After hearing the parties the revisional application was discharged by order dated 27.02.1912. Challenging the said order this revisional application has been filed under section 115(4) of the Code of Civil Procedure and the Rule was issued thereupon.

This Rule is appearing in the list for hearing for a long period of time but no one appears to support the Rule. Today when the matter is taken for delivering judgment, Mr. Khalilur Rahman Bhuiyan, the learned Advocate appears for the petitioner and submits that both the courts below on mere assumption arrived at a wrong and faulty decision by allowing the amendment petition and hence both courts below committed a gross error of law in the decision occasioning failure of justice. The learned Advocate further submits that both the courts below arrived at an arbitrary decision without going through the real facts and through this wrong decision the nature and character of the plaint will be changed.

The Rule has been opposed by the present opposite party.

Mr. Md. Nurul Amin, the learned Advocate appearing along with the learned Advocate Mr. Shursea Dev Patul for the opposite party No. 1 submits that the suit was filed by the plaintiff opposite party seeking the decree for mandatory injunction for removing the iron stair described in the schedule Kha situated in the land measuring 2 feet × feet out of two kathas and the learned trial court and the learned revisional court after considering the factual and legal aspects concurrently found that the application for amendment of the plaint could not change the nature and

character of the suit, as such, the leave granting order is liable to be discharged. Under the provision of the Code of Civil procedure an amendment of a plaint can be undertaken at any stage of time during the pendency of the suit and the present opposite party as the plaintiff filed the application for amendment of the plaint only to provide information as to the other two cases being the Title Suit Nos. 267 of 2000 and 72 of 2001 which have been disposed of in favour of the present plaintiff-opposite party regarding the same property, therefore, the opposite party had no other alternative but to pray mandatory injunction from this court.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the application filed under section 115(4) of the Code of Civil Procedure along with its Annexure therein, in particular, the impugned judgment and order passed by the learned revisional court below, it appears to me that the present opposite party as the plaintiff filed the title suit for a decree of mandatory injunction in order to remove the iron stair from the suit land measuring 2 feet × 2 feet out of 2 kathas of land.

This revisional application has been filed challenging the judgment and order passed by the revisional court affirming the judgment of the learned trial court. I have carefully examined the judgment and order passed by the learned

revisional court below and also the other materials on records. I have also examined the application filed Under Order 6 Rule 17 for amendment of the plaint which contains that the present opposite party has been enjoying the land for a long period of time but a stair was permitted to be built on a temporary basis and the stair has not been removed as stipulated in the said permission. The application further contains that the present opposite party filed two other cases being Title Suit Nos. 267 of 2000 and 72 of 2001. After examining the application for amendment exhibited as Annexure-B, I am ascertain that any amendment by insertion of a paragraph regarding the matter of two previous suits cannot cause change nature and character of the original suit.

Now let me examine the judgment and order passed by the courts below. The learned Assistant Judge by its judgment and order dated 12.05.2011 allowing the amendment on the basis of the following findings:-

“The record is taken for order. This is the petition for amendment of plaint. Heard and perused the record and documents presented before the court. On perusal it seems to the court that the amendment petition can be allowed as it will not change the nature and character of the suit. But for coming in this dilatory stage cost should be imposed on him.”

The learned revisional court below concurrently found that any amendment as prayed for could not change the nature and character of the suit which reads as follows:-

“I have heard the learned lawyers for both sides.

I have perused the revision application in details.

I have also perused the impugned order.

According to provision order 6 Rule 17 of C.P.C. the court can amend pleadings at any stage if it is necessary to determined real controversy between the parties and if it does not change the nature and character of the suit. Learned advocate for the petitioner has filed 112 page long revision-petition. He has claimed the impugned order has changed the nature and character of the suit. But he did not show how the impugned amendment has changed the nature and character of the suit. Learned trial court has opined that proposed amendment would not change the nature and character of the suit. I have also gone through the proposed amendment petition. It appears to me that proposed amendment would not change the nature and character of the suit and it is also necessary to determine real controversy between the parties. So, I do not find any illegality in the impugned order and as such there is nothing to interfere with it. In the result, the revision petition will be disallowed.”

After perusing the relevant portion of the two judgments and orders I am satisfied the learned courts below committed no error of law in disposing of the application under Order 6 Rule 17 of the Code of Civil Procedure and I am, therefore, not inclined to interfere into the impugned judgment and order.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The learned Assistant Judge, 4th court, Dhaka is hereby directed to dispose of the Title Suit No. 246/2000 within 6 months from the date of receipt of the copy of the judgment without allowing any unnecessary adjournment.

The interim order of stay granted at the time of issuance of the leave granting order upon operation of the impugned judgment passed by the learned Additional District Judge, 2nd Court, Dhaka rejecting the Civil Revision No. 167 of 2011 is hereby recalled and vacated.

The office is directed to communicate the judgment and order to the court concerned and send down the lower court record immediately.